

Calendar Line 8**Case Name:** *Berkshire Hathaway Homestate Insurance Company v. Andy Le***Case No.:** 25CV471687**PLAINTIFF'S MOTION TO RELATE & CONSOLIDATE**

No opposition received. Good cause appearing, Plaintiff's motion is GRANTED.

Discussion

This action arises from a motor vehicle collision that allegedly occurred on September 8, 2023. Plaintiff Berkshire Hathaway Homestate Companies ("BHHC"), the workers' compensation carrier for Plaintiff Camacho's employer, seeks recovery against Defendant Andy Le pursuant to Labor Code section 3852 for workers' compensation benefits paid and to be paid as a result of injuries allegedly caused by the collision.

Separately, Camacho filed a personal injury action against the same defendants arising from the same incident, *Camacho v. Le, et al.*, Santa Clara County Superior Court Case No. 25CV472800. Both actions remain pending, discovery is ongoing, and no trial date has been set in either matter. No opposition to the present motion has been filed.

Labor Code section 3853 governs situations in which both an injured employee and the employer or workers' compensation carrier prosecute separate actions against the same third-party tortfeasor. The statute provides that where separate actions are brought before trial, they "shall" be consolidated. The purpose of the statute is to ensure that the respective rights of the employee and employer or carrier are adjudicated in a single proceeding, thereby avoiding multiple actions arising from the same injury and preventing inconsistent determinations concerning liability and damages.

The statutory prerequisites are satisfied here. BHHC and Camacho have filed separate actions against the same defendants arising from the same September 8, 2023 motor vehicle collision, and both actions remain pending before trial. Accordingly, consolidation is required under Labor Code section 3853.

Consolidation is also appropriate under Code of Civil Procedure section 1048. The two actions present common questions of law and fact, including the circumstances of the accident, Defendants' alleged negligence, comparative fault, causation, the extent to which the accident aggravated Plaintiff Camacho's preexisting injuries, and the damages attributable to the collision. Separate proceedings would require substantially duplicative discovery, witness testimony, and expert evidence, and would create an unnecessary risk of inconsistent findings on issues common to both cases. Consolidation will promote judicial economy and avoid unnecessary costs and delay. The Court finds no apparent prejudice to any party, particularly where discovery remains ongoing, no trial date has been set, and the motion is unopposed.

Accordingly, Plaintiff's motion is GRANTED.

Order